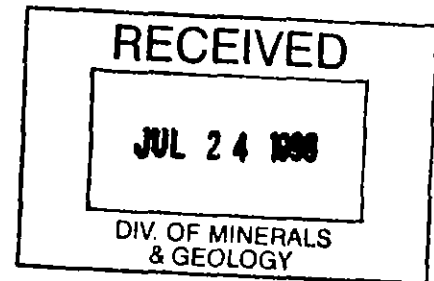




July 19, 1998

Ms. Christina L. Kamnikar
Division of Minerals and Geology
Department of Natural Resources
1313 Sherman Street, Room 215
Denver, Colorado 80203-2273



Dear Ms. Kamnikar,

The St. Vrain Valley Community Watchdogs want to thank you for sending us a copy of your inspection report on Southdown Corporation dated 6/12/98.

Our initial complaint focused on the air pollution from baghouse dust that was blowing out of Southdown's old quarry. That problem was corrected when Southdown complied with a directive from the Colorado Department of Public Health and the Environment to cover the dust so that it was not exposed to the wind.

Southdown installed a spray system at the new disposal site that appears to be containing the baghouse dust from exposure to the wind.

On June 17, 1998 eight members of our community based environmental protection team met with three officials from Southdown, Mr. Lohr, Mr. Mossberg, and Mr Heintz, Vice President of Environmental Affairs from the corporate office in Houston. One item on the agenda was an analysis of a photograph of air pollution coming from the plant. The officials acknowledged that housekeeping practices at the plant were not up to par. They said that steps would be taken to correct this problem, but so far there is no change.

The photograph that we are enclosing shows high concentrations of particulates blowing off the property--from buildings, from stockpiled materials, and from the infrastructure of roadways and parking lots. This is an unacceptable situation for the people who live downwind; who suffer when these particulates filter out on their skin, their eyes, and into their lungs. These incidents are episodic, and they appear to fall through the cracks of inspections, fugitive dust control plans, and other permit stipulations. They are, however, real incidents of high risk air pollution, and the incidents have aroused legitimate health concerns among residents of this community.

Would the Department of Minerals and Geology be able to assist us with an analysis specific to the particulates blowing off Southdown's property? With health issues at stake, we do not want to rely on published descriptions that are generic, but we would like to know the subtle compositional nature and the minerological components of the particulates that are going airborne. Because of the nature of the mining and processing activities at Southdown, it is possible that crystalline silica (classified by IARC in 1996 as a known human carcinogen)* may be present in the dust that is blowing into the breathing environment of the community.

Thank you for your consideration. And thanks again for following-up on our initial concerns.

Sincerely,

for/ Richard Cargill

Saint Vrain Valley Community Watchdogs Steering Committee

c/o Richard Cargill
5976 Hygiene Road
Longmont, CO 80503

Enclosure

cc: St. Vrain Valley Community Watchdogs
Senator Ben Nighthorse Campbell
William P. Yellowtail, Regional Administrator, Environmental Protection Agency
Richard Long, Director of Air Program, Environmental Protection Agency
Janine Pryor, American Lung Association
Carl Mount, Division of Minerals and Geology
Colorado Department of Public Health and Environment
Ray Mohr, CDPHE, Community Based Environmental Protection - Air Quality
Colorado Air Quality Control Commission
Director, Regional Air Quality Council
Boulder County Health Department
Boulder County Land Use Commissioners
Robert Friend, Mine Safety Health Administration
Herb Gibson, OSHA, Department of Labor
Director, Regional Air Quality Planning Commission
Southdown Corporation

* Crystalline Silica, Society for Mining, Metallurgy and Exploration, Inc., Littleton, CO., (1998).

Dust-up at Southdown

by Jeremy Breningstall

Seven residents of the St. Vrain river valley looked west and saw which way the wind was blowing: in their faces and full of dust. In response, they have formed an organization called the St. Vrain Valley Community Watchdogs, that aims to improve the area's air quality. Already they have taken two companies to task and the group is now poised to expand its activities and become a full-fledged grassroots environmental operation.

Trouble came to their attention when Western Mobile sought a permit for a 30-year gravel operation earlier this year. While the area where Highways 36 and 66 converge has historically been a center for digging operations, Western Mobile's plans to mine 600 acres of nearby land left residents wary. Locals wanted "to eliminate most of the damage that might occur if the mining was done haphazardly," says Leslie Goodwin, an antique dealer and member of the group's newly formed steering committee.

There was concern about the number of truck trips that would be going through, the days and hours of operation, and the effect mining would have on the local habitat. Traffic, safety, and animal life could all be effected by excessive reclamation. So over 120 citizens showed up for three hearings before the county commissioners.

Of the approved permit, Goodwin says, "By speaking up we felt like we had a lot of our needs met. We didn't get everything we wanted. We compromised and they compromised."

With six years remaining before Western Mobile starts mining, the neighborhood group was considering its options. It was around this time that Richard Cargill, a retired ecologist, began to notice a lot of days when white dust would film up into the air, leaving it opaque. Cargill traced the fugitive dust to the Southdown Lyons cement plant.

"He brought it up to the neighbors and we thought maybe there's a problem here that nobody knows about," says Goodwin.

Cement kiln dust, a waste byproduct of Southdown's operation, was blowing into the community and into people's homes via an uncovered (and nearly full) pit. And trucks that should've been washed off were not, the neighbors found. Pictures were taken and complaints were filed with the county and

Nighthorse Campbell's office submitted an inquiry to the EPA regarding Southdown's dust problem. "It's interesting to us that Southdown passes all the inspections set by state officials, but some of these air pollution concerns fall through the cracks," says Cargill.

However, Southdown thus far has proved to be accommodating in responding to citizen's grievances.

"We want to be good neighbors, and if we have problems we want to solve them," says Steve Mossberg, the facility compliance manager at the plant. The company's vice-president of environmental affairs was flown in from Houston to confer. A dust management plan was proposed. A new gravel pit would be built, along with a \$60,000 sprinkler system. The dust in the pit would be watered down in order to create a crust. Trucks would be cleansed in compliance with regulatory standards before leaving the facility.

"They claimed all along that they were planning to close that

pit June 26," says Goodwin. "We'll never know if that was the case, quite frankly." But she has few complaints about the way things are going. She describes it as "a very satisfying example of how business and citizens could cooperate for the overall benefit of all."

Alice Platt echoes that sentiment. "I feel like Southdown has actually been trying to work with the community, as has Boulder County."

Cargill says, "There's still more to do. We still have dust storms from Southdown at least once or twice a week. And some of those storms are the result of poor housekeeping down there."

"The number of hospital admissions and people admitted to emergency rooms with respiratory problems correlate with the number of particles in the air," says Dr. M.W. Reynolds, a retired radiologist who lives in the area.

Reynolds cites a recent American Lung Association report which found that 48 percent of the people in Boulder County already have some form of lung dysfunction, putting them at greater risk for lung disease. "The incidents of childhood asthma are increasing

emissions and diesel trucks are also very much a part of the problem, throwing carcinogens into the air. And with more new housing construction being initiated every day, the quantity of vehicular traffic is only likely to increase. "Right now, there isn't any way, when you measure the air, to identify where the particles come from," he says.

In terms of dealing with industrial facilities themselves, part of the problem is simply insuring that there is adequate monitoring being done in the first place. Gabi Hoefler, an Environmental Health Specialist at the Boulder County Health Department, points out that even if they're given a call, inspectors can only respond during business hours. Even then, they may be busy with other calls.

Of Southdown, Hoefler says, "I don't know that they necessarily ignored anything. It's just that over the years [the dust has] become a problem." According to guidelines, dust shouldn't be going off property, and shouldn't be over 20 percent opacity. (Opacity measures the amount of light that is blocked out.)

Sidna Leavenworth says of the St. Vrain Valley group, "We are very fortunate to have some real expertise on this committee. We have a chemical environmentalist, a radiologist, a consulting geologist that is quite knowledgeable about mining, and a retired environmental activist. Residents in Hygiene fought the same type of problems in 1982. Citizens were not as aware of the danger, and they did not receive much cooperation."

Goodwin says, "These companies are often only inspected once or twice a year, and they're not surprise inspections, so they're allowed to get ready for it. It's not black and white, so it's not clear to us what it means to comply with the EPA requirements and with the Colorado Department of Health requirements."

The group's next several tasks will include studying these regulations, and assessing the impact of dust on plant workers. "We're not antagonistic to anybody," says Goodwin, "We're not going to chain ourselves to old forest trees or anything else. We just want to have a say in what's going on in our neighborhoods. One thing I learned about going to these commissioners' meetings is they're not always aware of what's going on in their communities. If they don't hear feedback from citizens, how are they going to know what's going to happen to citizens?"

Reynolds says of Southdown's efforts to improve based on citizens' concerns: "We didn't take that and go away. We told them we appreciated their efforts, but that we were going to keep watching and when we saw something that didn't look right

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—Dr. M.W. Reynolds